

STATE OF INDIANA)
) SS.
COUNTY OF PORTER)

IN THE PORTER SUPERIOR COURT

SITTING AT VALPARAISO, INDIANA

THOMAS GEORGIADIS,)
)
Plaintiff,)
)
v.)
)
DART X INC., d/b/a DART)
EXPRESS and STERLING JAMES,)
)
Defendants.)

CAUSE NO.:

COMPLAINT

COUNT 1

Comes now the plaintiff, Thomas Georgiadis, by his attorneys, Schafer & Schafer LLP Attorneys at Law, and for his Complaint against the defendants, Dart X, Inc., d/b/a Dart Express and Sterling James, allege and state:

1. That plaintiff, Thomas Georgiadis at all times relevant herein was a citizen of the State of Indiana; County of Porter, Town of Hebron.

2. That at all times relevant herein defendant, Sterling James, was operating a tractor trailer semi truck in which the tractor was owned and maintained by defendant, Dart X, Inc. d/b/a Dart Express, and the trailer was owned and maintained by defendant, Dart X, Inc. d/b/a Dart Express, and defendants, Sterling James was a permissive user of said trailer.

3. That at all times relevant herein defendant, Sterling James, was working within the scope and course of his employment with defendant, Dart X, Inc. d/b/a Dart Express

4. That on and prior to September 27, 2021 Hayes Leonard Road was a public roadway running in a generally north and south direction in the City of Valparaiso, County of Porter, State of Indiana and US Hwy 30 intersected Hayes Leonard Road in a generally east and

west direction in the City of Valparaiso, County of Porter, State of Indiana.

5. That on or about September 27, 2021 plaintiff, Thomas Georgiadis, was traveling northbound on Hayes Leonard Road, in Valparaiso, Indiana. That at the same time defendant, Sterling James, was driving east on US Highway 30 when he carelessly and negligently ran the red light and violently t-boning Thomas Georgiadis's vehicle, causing the vehicle to roll over.

6. That defendant, Sterling James, carelessly, negligently, willfully and wantonly, failed to control his vehicle thereby causing the aforesaid collision, and further, was guilty of one or more of the following wrongful acts or omissions:

- a. Carelessly, negligently, willfully and wantonly failed to maintain a proper and sufficient lookout.
- b. Carelessly, negligently, willfully and wantonly was driving too fast for the conditions.
- c. Carelessly, negligently, willfully and wantonly failed to keep his motor vehicle under proper control.
- d. Carelessly, negligently, willfully and wantonly failed to yield right of way and ran a red light.
- d. Carelessly, negligently, willfully and wantonly operated his tractor trailer semi truck so as to cause a collision with plaintiff's vehicle.
- e. Carelessly, negligently, willfully and wantonly failed to inspect the truck prior to its use.
- f. Carelessly, negligently, willfully and wantonly failed to follow the Federal Motor Carrier Safety Regulations.
- g. Carelessly, negligently, willfully and wantonly failed to use the care an ordinarily careful person would have used under the same or similar circumstances.

7. That defendants, Dart X, Inc. d/b/a Dart Express carelessly, negligently, willfully and wantonly failed to properly maintain their tractor trailer semi truck thereby causing the aforesaid collision, and further, was guilty of one or more of the following wrongful acts or

omissions:

- a. Carelessly, negligently, willfully and wantonly failed to keep their truck and trailer in proper working condition.
- b. Carelessly, negligently, willfully and wantonly failed to follow the Federal Motor Carrier Safety Regulations.
- c. Carelessly, negligently, willfully and wantonly failed to use the care an ordinarily careful tractor trailer semi truck company would have used under the same or similar circumstances.
- d. Carelessly, negligently, willfully and wantonly failed to use the care an ordinarily careful trailer company would have used under the same or similar circumstances.

8. That as a direct and proximate result of one or more of the aforesaid wrongful acts or omissions of the defendants, plaintiffs' vehicle was substantially damaged and plaintiff further lost the use of the same.

9. That as a further direct and proximate result of one or more of the aforesaid wrongful acts or omissions of the defendants, plaintiff, Thomas Georgiadis, sustained severe and permanent injuries, disfigurement, deformity, physical pain, mental suffering, is unable to function as a whole person, and has a diminished quality of life.

10. That as a further direct and proximate result of one or more of the aforesaid wrongful acts or omissions of the defendants, plaintiff, Thomas Georgiadis, suffered multiple injuries including but not limited to a traumatic brain injury, concussion, permanent nerve damage and neck and back injury, a fractured collar bone, and left cervical myofascial pain syndrome, all of which require medical care and treatment, and further, has become liable for past and future medical expenses, has past and future lost wages and earning capacity, has and will be kept from attending to his ordinary affairs and duties and has and will lose great gains which he otherwise would have made and acquired and has sustained permanent injuries that has

irreversibly altered his life.

WHEREFORE, plaintiff, Thomas Georgiadis, demands judgment against the defendants, Dart X, Inc. d/b/a Dart Express, and Sterling James for such sums as are reasonable in the premises, for compensatory and punitive damages, for costs of this action and for all other just and proper relief in the premises.

Respectfully submitted,

SCHAFER & SCHAFER, LLP
ATTORNEYS AT LAW

BY: /s/Timothy S. Schafer II
TIMOTHY S. SCHAFER II
Atty #28048-64
Attorney for Plaintiff

JURY DEMAND

Come now the plaintiffs, by counsel, and demand a trial by jury on issues triable by a jury.

Respectfully submitted,

SCHAFER & SCHAFER, LLP
ATTORNEYS AT LAW

BY: /s/Timothy S. Schafer II
TODD S. SCHAFER